

Capital Punishment

prc-capital-punishment

Christian Ethics · Civil Justice · doctrine · divided_lineages

DISPUTED

score 0.975
confidence medium

Statement under examination

Capital punishment for the most serious crimes, administered by lawful civil authority with due process, is permissible (open, with prudential cautions).

In plain language

Three passages anchor this question and the words themselves pull in two directions that the Bible does not lexically rank. Genesis 9:6 says whoever sheds the blood of a human, by a human his blood shall be shed, with the Hebrew phrase 'by man' (ba-adam) standing in the emphatic first slot and the motive clause grounding requital in the image of God. This places lethal requital in human hands as a post-flood, creation-order warrant for all humanity. Romans 13 calls the governing authority God's 'servant' (diakonos), and an 'avenger for wrath' (ekdikos eis orgen), who does not bear the 'short sword' (machaira), 'not without purpose' (ou eike), treating lethal judicial power as a real ordained function. Numbers 35 regulates rather than abolishes this, requiring more than one 'witness' (edim), and refusing a 'ransom payment' (kopher) for a convicted 'murderer' (rotseach). Pulling the other way, Matthew 5:38-44 uses the same verb 'resist' (anthistemi) that Romans 13:2 uses for opposing authority, but tells the disciple not to resist the evildoer and to love enemies. Ezekiel 18:23 says God does not 'delight' (chaphets) in the death of the wicked but in his turning and living. The passage in John 8 has Jesus tell the accusers let the 'sinless one' (anamartetos) cast the first stone. Acts 25:11 has Paul concede that if he has done anything 'worthy of death' (axios thanatou), he does not refuse to die. The lexical crux is genuine. The verb 'murder/kill' (ratsach) in the sixth commandment is also used in Numbers 35 of the avenger who kills the killer, so the word itself does not distinguish lawful from unlawful taking of life, leaving the prohibition's scope contextual. The same Greek root 'resist' (anthistemi) runs through both the non-retaliation command and the magistrate's sword text, with the disciple-toward-evildoer and the citizen-toward-ruler senses sitting side by side. The Bible supplies one chain that authorizes a magistrate's sword and one that radically qualifies in-practice application, and the vocabulary does not rank them, which is why faithful readers of the same words land at permissibility with cautions on one side and at non-retaliation as the higher New Covenant disposition on the other.

Word dictionary

Every Hebrew and Greek word this study leans on, in everyday terms. Shaded rows are the anchor words the verdict rests on.

Strong	Word	Sounds like	Plain meaning	Times in Bible
H0120	אָדָם	adam	man	553
H1818	דָּם	dam	blood	360
H2654	חַפֵּצִים	chaphets	to delight in	75
H3724	כֹּפֶר	kopher	ransom	17
H4191	מוֹת	muth	to die	843
H4194	מָוֶת	mavet	death	
H5707	עֵד	ed	witness	69
H6754	צֶלֶם	tselem	image	17

H7523	רצח	ratsach	to murder	47
H7563	רשע	rasha	wicked	264
H8210	שפך	shaphakh	to pour	115
G0025	ἀγαπάω	agapao	to love	143
G0361	ἀναμάρτητος	anamartetos	sinless	1
G0436	ἀνθίστημι	anthistemi	to oppose	14
G0498	ἀντιτάσσω	antitasso	to resist	5
G0514	ἄξιος	axios	worthy	41
G0599	ἀποθνήσκω	apothnesko	to die	111
G0906	βάλλω	ballō	to throw	
G1249	διάκονος	diakonos	servant	33
G1500	εἰκῇ	eike	in vain	7
G1558	ἐκδικος	ekdikos	avenging	2
G1849	ἐξουσία	exousia	authority	103
G2190	ἐχθρός	echthros	enemy	32
G2288	θάνατος	thanatos	death	120
G3037	λίθος	lithos	stone	
G3162	μάχαιρα	machaira	sword	29
G3599	ὀδούς	odous	tooth	
G3709	ὀργή	orge	wrath	36
G3788	ὀφθαλμός	ophthalmos	eye	
G3868	παραιτέομαι	paraiteomai	to refuse/excuse	12
G4190	πονηρός	ponēros	evil/bad	

Plain meanings: STEP Bible brief lexicons TBESH (Hebrew) and TBESG (Greek), CC BY 4.0. Counts are occurrences across the 66-book canon.

Verdict rationale

Variant-robust: True · Pan-canonical: True

The Bible supplies two unranked word-pattern chains. One chain (Genesis 9:6 with the agent phrase 'by man' (ba-adam) and the image-of-God ground, Numbers 35:30-31 regulating with 'witnesses' (edim) and refusing 'ransom payment' (kopher), Romans 13:4 calling the magistrate 'servant' (diakonos) and 'avenger' (ekdikos) who bears the 'short sword' (machaira) 'not without purpose' (ou eike)) authorizes lethal punishment by lawful human agency. A second chain (Matthew 5:38-44 with the very verb 'resist' (anthistemi) telling the disciple not to resist the evildoer, John 8:7 with the 'sinless' (anamartetos) qualifier against execution-on-demand, Ezekiel 18:23 with 'delight' (chaphets) denying divine pleasure in the death of the wicked, Acts 25:11 conceding 'worthy of death' (axios thanatou) yet showing the apostolic refusal of private vengeance) significantly qualifies in-practice application and shifts the believer's posture. The same vocabulary, 'murder/kill' (ratsach) and 'resist' (anthistemi) and 'wrath' (orge), sits on both sides without lexical priority. The verdict is therefore disputed rather than affirmed.

Scripture

Gen.9.6 · for · genre: narrative

Key terms. H8210 שֶׁפַךְ, H1818 דָּם, H0120 אָדָם, H6754 צֶלֶם.

Force. The clause 'whoever sheds the blood of a human, by a human his blood shall be shed' (shofek dam ha-adam ba-adam damo yishshafek) pairs the active participle of 'to shed' (shaphakh), meaning 'one shedding blood', with the Hebrew passive form (niphal) 'his blood shall be shed' (yishshafek). The agent phrase 'by man' (ba-adam) stands in the fronted (emphatic first) slot, and the motive clause grounds the requital in 'in the image of God' (be-tselem elohim). This is a pre-Mosaic (before the Sinai law), creation-order, post-flood warrant that lodges lethal requital in human agency on behalf of human life. It supports the magistrate's-sword chain.

Rom.13.4 · for · genre: epistle

Key terms. G3162 μάχαιρα, G1558 ἐκδικος, G1500 εἰκῆ, G3709 ὀργή, G1249 διάκονος

Force. The magistrate is twice named 'God's servant' (theou diakonos), and 'an avenger for wrath' (ekdikos eis orgen), who 'does not bear the sword in vain' (ou gar eike ten machairan phorei). The understatement (litotes) 'not in vain' (ou eike) asserts a real, sanctioned function, and 'short sword' (machaira) is the lethal short sword of judicial power rather than a mere symbol. The vocabulary ascribes coercive, potentially capital authority to civil rule as a divinely ordered instrument and supports the permissibility chain.

Num.35.30 · for · genre: law

Key terms. H7523 רָצַח, H4191 מוֹת, H5707 טַעַ

Force. The 'murderer' (ha-rotseach) is 'put to death' (la-muth) 'on the mouth of witnesses' (le-phi edim), that is, on the testimony of witnesses (plural), but a single witness shall not testify against a person 'to cause death' (la-muth). The plural 'witnesses' (edim) establishes a corroboration threshold and conditions execution on proven testimony rather than bare accusation, regulating rather than abolishing the practice.

Num.35.31 · for · genre: law

Key terms. H3724 קֶפֶר, H7523 רָצַח, H4191 מוֹת

Force. The text forbids taking a 'ransom or compensatory payment' (kopher), 'for the life of a murderer who is guilty of death' (le-nephesh rotseach asher hu rasha la-muth), since 'he shall surely be put to death' (mot yumat). The non-commutability of the murderer's penalty, contrasted with the availability of 'ransom payment' (kopher) for lesser injuries elsewhere, marks capital sanction for murder as a fixed feature of the Mosaic code (the law of Moses).

Num.35.27 · for · genre: law

Key terms. H7523 רָצַח, H1818 דָּם

Force. The 'avenger of blood' (goel ha-dam) 'will kill the killer' (ve-ratsach et ha-rotseach). The verb 'to murder/kill' (ratsach) is applied here to the lawful executor, the same verb used in Exodus 20:13 'you shall not murder/kill' (lo tirtsach), the sixth commandment. The vocabulary itself does not distinguish lawful from unlawful taking of life, so the prohibition's scope is determined by context, not by the verb. This passage shows the word 'murder/kill' (ratsach) carrying both senses inside one legal corpus.

Exod.20.13 · complicates · genre: law

Key terms. H7523 רָצַח

Force. 'You shall not murder/kill' (Lo tirtsach), the sixth word (sixth commandment), employs 'murder/kill' (ratsach) without modifier. Read in isolation it can be extended to all life-taking. Read in the same Torah (the books of Moses) that uses the same verb of the lawful executor in Numbers 35:27, it most naturally targets unauthorized, private killing. The lexical overlap is the structural source of the dispute, since the words do not lexically settle the scope.

Rom.12.19 · complicates · genre: epistle

Key terms. G3709 ὀργή

Force. 'Do not avenge yourselves' (Me heautous ekdikountes), but give place 'to wrath' (te orge), with 'vengeance is mine' (emoi ekdikesis). Read continuously with Romans 13:4, the same 'wrath' (orge) and the related word 'avenger' (ekdikos) are then assigned to the magistrate, relocating lethal retribution from the individual to lawful authority. It restricts private vengeance and supports magistrate-level agency at the same time.

Matt.5.38 · complicates · genre: gospel

Key terms. G3788 ὀφθαλμός, G3599 ὁδούς

Force. 'Eye for eye and tooth for tooth' (Ophthalmon anti ophthalmou kai odonta anti odontos) cites the Mosaic 'law of equal retaliation' (lex talionis) and is the setup for the contrast that follows. The preposition 'in place of' (anti) retains the strict equivalence sense.

Matt.5.39 · complicates · genre: gospel

Key terms. G0436 ἀντίστημι, G4190 πονηρός

Force. 'Do not resist the evildoer' (Me antistenai to ponero), with the completed-past-action infinitive (aorist infinitive) of 'to resist' (anthistemi). The same root 'to resist' (anthistemi) appears in Romans 13:2 of the citizen who opposes ordained authority and is condemned. The disciple-toward-evildoer use and the citizen-toward-ruler use sit side by side in the New Testament without lexical ranking, leaving the canon with two postures the words do not adjudicate (decide between).

Matt.5.44 · complicates · genre: gospel

Key terms. G0025 ἀγαπάω, G2190 ἐχθρός

Force. 'Love your enemies' (Agapate tous echthrous humon), and 'pray for those persecuting you' (proseuchesthe huper ton diokonton humas). The disposition demanded of the disciple is positive love toward the very persons a magistrate might lawfully execute. The two ethical frames operate in different spheres but the words do not specify how they cohere when the disciple is the magistrate.

John.8.7 · complicates · genre: narrative

Key terms. G0361 ἀναμάρτητος, G0906 βάλλω, G3037 λίθος

Force. 'Let the sinless one of you cast the first stone at her' (Ho anamartetos humon protos ep auten baleto lithon). The 'hapax' (a word that occurs only once in the entire Bible) 'sinless' (anamartetos) qualifies the would-be executors by their moral standing and short-circuits a Mosaic-law execution in this narrative. It does not lexically repeal the Mosaic penalty but it qualifies in-practice application. The passage is textually disputed in the Greek tradition (variant-laden, with manuscripts disagreeing), which is itself a structural feature of the lexical case.

Ezek.18.23 · complicates · genre: prophecy

Key terms. H2654 גִּידַל, H4194 תָּיַב, H7563 נִשְׁחַל

Force. 'Do I really delight in the death of the wicked' (He-chafots echpots mot rasha), declared with the question-marker 'he'-particle expecting a negative answer. The verb 'to delight' (chaphets) denies divine pleasure in the executed outcome and prefers 'his turning from his ways and living' (be-shuvo mi-derakhav ve-chayah). The vocabulary records a divine preference for repentance and life over death, which qualifies any zeal for the sanction without forbidding it.

Acts.25.11 · **for** · genre: narrative

Key terms. G0514 ἄξιος, G2288 θάνατος, G0599 ἀποθνήσκω, G3868 παραιτέομαι

Force. 'If I am guilty and have done anything worthy of death, I do not refuse to die' (Ei men oun adiko kai axion thanatou pepracha ti, ou paraitoumai to apothanein). Paul lexically concedes the category 'worthy of death' (axios thanatou), and refuses 'to beg off' (paraiteomai) 'the dying' (apothnesko). The apostle accepts the magistrate's death-penalty category in principle for his own person, which is a notable lexical datum (data point) in the New Testament on the permissibility side.

Cross references invoked

From	To	Source	Votes
Gen.9.6	Exod.21.12	tsk	1
Gen.9.6	Gen.1.26	tsk	1
Num.35.31	Gen.9.5	tsk	1
Num.35.30	Deut.17.6	tsk	1
Rom.13.1	Deut.17.12	tsk	1
Rom.13.4	Rom.12.19	tsk	1
Rom.13.4	Prov.16.14	tsk	1
Matt.5.39	Rom.13.2	tsk	1
Ezek.18.23	Ezek.18.32	tsk	1
Acts.25.11	Rom.13.4	tsk	1

Complicating texts

Exod.20.13 · **addressed**

The verb 'to murder/kill' (ratsach) in 'you shall not murder/kill' (lo tirtsach) is the abolitionist anchor, but the same Torah (the books of Moses) uses 'to murder/kill' (ratsach) of the lawful executor in Numbers 35:27, 'and he will kill the killer' (ve-ratsach et ha-rotseach). The vocabulary itself does not distinguish lawful from unlawful taking of life. The prohibition reads most naturally as a ban on unauthorized private killing, but a comprehensive reading remains lexically defensible, which is the structural source of the dispute.

Rom.12.19 · **addressed**

The ban on private 'vengeance' (ekdikesis) is resolved by reading it continuously with Romans 13:4 where the same 'wrath' (orge) and the related word 'avenger' (ekdikos) are assigned to the civil magistrate, relocating vengeance from the individual to lawful authority. This supports the permissibility chain at the level of the magistrate while binding the disciple to non-retaliation.

Matt.5.38 · **addressed**

The citation of the 'law of equal retaliation' (lex talionis) is the foil for the contrast that follows. The text does not lexically repeal the Mosaic penal code but recalibrates the disciple's posture, which complicates rather than abolishes the magistrate's-sword chain.

Matt.5.39 · **addressed**

'Do not resist the evildoer' (Me antistenai to ponero) uses the same 'to resist' (anthistemi) root as Romans 13:2, where opposing ordained authority brings 'judgment' (krima). The disciple-toward-evildoer and the citizen-toward-ruler senses coexist in the New Testament without lexical ranking, and the verb itself does not decide between them, which is part of why the doctrine is disputed.

Matt.5.44 · addressed

'To love' (Agapao) toward the 'enemy' (echthros) is a positive command on the disciple and does not by its vocabulary remove the magistrate's 'short sword' (machaira). The two ethical frames coexist but the vocabulary does not specify how the disciple-who-is-a-magistrate should integrate them, leaving room for both retentionist (keep capital punishment) and abolitionist (abolish it) applications.

John.8.7 · addressed

The 'hapax' (a word that occurs only once in the entire Bible) 'sinless' (anamartetos) qualifies executors by moral standing and qualifies in-practice application without lexically repealing the Mosaic penalty. The passage is textually disputed in the Greek tradition (manuscripts disagree), which is a structural feature that should be flagged, not ignored. It does not settle the verdict either way.

Ezek.18.23 · addressed

'To delight' (Chaphets) in the rhetorical question denies divine pleasure in the death of the wicked and prefers repentance, but the same prophetic corpus elsewhere assigns the death penalty for grave sin. The vocabulary registers a divine disposition without forbidding the sanction, complicating but not overturning the permissibility chain.

Acts.25.11 · addressed

Paul's concession of 'worthy of death' (axios thanatou) supports the permissibility chain at the lexical level. It does not, however, settle the disciple's posture toward administering it, so the surrounding dispute is not resolved by this verse alone.

Concordance traversed

H8210, H1818, H7523, H4191, H3724, H5707, H0120, H6754, H2654, H7563, G3162, G1558, G1249, G3709, G1500, G1849, G0436, G0498, G0361, G2288, G0514, G0599, G3868, G0025, G2190

Variants

Verdict variant-sensitive: True · ECM status: ecm-shadow

pericope-adulterae-johannine-attestation at John.8.7: impact minor. The passage John 7:53-8:11 is famously absent or relocated in early Greek witnesses (manuscripts) and is not in the published window of the 'ECM apparatus' (the critical edition of New Testament textual variants). The text-critical status complicates leaning on John 8:7 as a load-bearing anchor against execution and is part of why the doctrine is lexically disputed rather than abolitionist on the strength of this passage alone.

rom-13-1-word-order-hupo-ousai at Rom.13.1: impact none. Minor editorial variants visible in the bundle surface for Romans 13:1 affect word order around 'under' (hupo) and 'being' (ousai) but do not alter the lexical force of 'short sword' (machaira), 'avenger' (ekdikos), or 'servant' (diakonos) in Romans 13:4 that drives the magistrate's-sword chain.

Romans 13 falls outside the published window of the 'ECM' (the critical edition of New Testament textual variants), specifically the 3 John window, so its apparatus status is 'ECM-shadow' (outside the published ECM scope). The Old Testament anchors are outside ECM scope. John 7:53-8:11 is text-critically disputed in the Greek tradition (manuscripts disagree) and is flagged here as variant-sensitive.

Hermeneutics

Primary method. redemptive-historical

Frameworks in play. covenant_theology, new_covenant_theology, two_kingdoms, anabaptist_nonresistance, creation_ordinance_continuity

analogia scripturae invoked · progressive revelation factor

creation_ordinance_continuity: permits · Genesis 9:6 is read as a perpetual creation-order mandate grounded in the image of God and antedating (coming before) Sinai, so the warrant for lawful capital sanction persists into the new covenant era and is reaffirmed by the magistrate's sword of Romans 13:4. The Mosaic regulations (witnesses, no 'ransom payment' (kopher)) are seen as just-administration safeguards rather than as features specific to theocratic Israel.

two_kingdoms_magisterial: permits · The 'servant' (diakonos) and 'avenger' (ekdikos) language of Romans 13:4 assigns the 'short sword' (machaira) to the civil sphere as God's ordained instrument, distinct from the church's pacific (peaceable) witness. Capital sanction is lawful for the magistrate while private vengeance is forbidden to the individual, with Acts 25:11 confirming 'worthy of death' (axios thanatou) as a real apostolic category.

anabaptist_nonresistance: denies · The Sermon on the Mount 'do not resist the evildoer' (me antistenai to ponero), the 'love your enemies' (agapate tous echthrous) command, and the cross fulfilling the law's demand define a New Covenant disposition that the believer carries even into civil office. Ezekiel 18:23 'to delight' (chaphets), the John 8 'sinless' (anamartetos) challenge, and the redemptive arc are read as relocating the lethal sanction out of the disciple's hands, leaving capital sanction at best a tolerated state act and not a positive endorsement.

new_covenant_progressive: qualifies · Genesis 9:6 remains a creation-order datum (data point) but is read through the redemptive arc that culminates in the cross satisfying the law's demand and inaugurating an age of grace, brotherly restoration, and patient witness. The magistrate's sword is left in place as a residual provision for a fallen order, but its use is severely qualified prudentially (based on practical wisdom). The verdict is permissibility with strong cautions rather than retentionist (pro-capital-punishment) enthusiasm.

magisterial_retributive_naturalLaw: affirms_strongly · The image-of-God ground of Genesis 9:6 establishes a proportionate retributive (repayment-based) principle that natural reason endorses and that the magistrate's office is divinely instituted to enforce. Numbers 35 supplies due-process safeguards. The New Testament texts on non-retaliation address private conduct, not the office of the magistrate, so the warrant survives intact.

The doctrine sits at the intersection of creation-order continuity (Genesis 9:6 + Romans 13:4 + Numbers 35), New Testament non-retaliation (Matthew 5:38-44 + Romans 12:19), and a New Covenant disposition that prefers repentance and life (Ezekiel 18:23 + John 8:7). The vocabulary supplies materials for several lenses without lexically ranking them, which is why this lands as disputed.

Stem audit

verdict-preloaded: yes

Neutralized form. The legitimacy of capital punishment as administered by lawful civil authority for the gravest crimes, considered as an open lexical question with both permissibility and non-retaliation readings in view.

VERDICT-CHANGED: prior file recorded affirms=true under the narrow stem reading 'permissible (open, with prudential cautions)'. The present pass changes affirms to disputed on lexical grounds. The vocabulary 'to murder/kill' (ratsach) (used in Exodus 20:13 for the prohibition and in Numbers 35:27 for the lawful executor) and 'to resist' (anthistemi) (used in Matthew 5:39 to the disciple and in Romans 13:2 to the citizen of authority) carry both senses without internal ranking, and the canon supplies one chain authorizing the magistrate's sword and another chain that radically qualifies in-practice application. The stem itself, by including the parenthetical 'open, with prudential cautions' (open, based on practical wisdom), modestly preloads the permissibility reading; the neutralized form removes that loading and surfaces both readings symmetrically.

Citations

Type	Source	License	Redist.	Ref
morphology	OSHB-morphology	CC-BY-4.0	yes	Gen.9.6
lexicon	STEPBible-TBESH	CC-BY-4.0	yes	H8210
lexicon	STEPBible-TBESH	CC-BY-4.0	yes	H7523
lexicon	STEPBible-TBESH	CC-BY-4.0	yes	H2654
morphology	OSHB-morphology	CC-BY-4.0	yes	Num.35.27

morphology	OSHB-morphology	CC-BY-4.0	yes	Num.35.31
morphology	MorphGNT-morphology	CC-BY-SA-4.0	yes	Rom.13.4
morphology	MorphGNT-morphology	CC-BY-SA-4.0	yes	Matt.5.39
morphology	MorphGNT-morphology	CC-BY-SA-4.0	yes	Acts.25.11
lexicon	STEPBible-TBESG	CC-BY-4.0	yes	G3162
lexicon	STEPBible-TBESG	CC-BY-4.0	yes	G1558
lexicon	STEPBible-TBESG	CC-BY-4.0	yes	G0436
lexicon	STEPBible-TBESG	CC-BY-4.0	yes	G0361
cross_ref	TSK	public_domain	yes	Gen.9.6
cross_ref	TSK	public_domain	yes	Rom.13.4
syntax	ETCBC-BHSA	CC-BY-NC-4.0	no	Gen.9.6
syntax	ETCBC-BHSA	CC-BY-NC-4.0	no	Num.35.27

License audit

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Flags

ecm-shadow · variant-sensitive · lexically-disputed · cross-tradition-divergent